

Instruction No. 29/2024-Customs,
F. No.401/103/2021-Cus.III
Government of India
Ministry of Finance,
Department of Revenue
(Central Board of Indirect Taxes & Customs)

Room no. 229A, North Block, New Delhi

Dated 14th November, 2024

To

All Principal Chief Commissioners/ Chief Commissioners of Customs/
Customs (Preventive)/Customs & Central Taxes.
All Principal Commissioners/Commissioners of Customs /Customs
(Preventive).
All Pr. Director General/Director Generals under CBIC.

**Subject: Requirement of Registration of Foreign Food Manufacturing
Facilities as per Food Safety and Standards (Import) First Amendment
Regulations, 2021, dated 03.11.2021 – reg.**

Madam/Sir,

Reference is invited to FSSAI office Order dated 30.08.2024 issued from
File No. TIC-B02/2/2022-IMPORTS-FSSAI (copy attached) on the above subject.

2. Vide above order, reference of FSSAI's even order no. dated 10th October,
2022 and 04th April, 2024 has been given whereby it was notified that registration
of foreign food manufacturing facilities (FFMF) falling under following five food
categories, who are intended to export these food products shall be mandatory
from 1st September, 2024;

- i. Milk and Milk products;
- ii. Meat and Meat products including Poultry, Fish and their products;
- iii. Egg powder;
- iv. Infant Food;
- v. Nutraceuticals.

2.1 It is further stated that an online portal – 'ReFoM', available on the FSSAI
website, has been created, which contains the information about the FFMF
intended to export articles of the above food categories to India as provided by the
Competent Authority of the exporting country. After examining the requisite
information, the individual FFMF is registered, the portal is updated, and a unique
registration number (URN) is generated by FSSAI for each facility registered at the
'ReFoM' portal. The same may be easily accessed from the said portal 'ReFoM'
(<https://sites.fssai.gov.in/refom/>).

2.2 Further, it has been stated as per the FSSAI order dated 04th April 2024,
FFMF of the exporting country shall be registered, through their competent

authority, to comply with the provisions from 1st September 2024. Thereafter, the import of above said food categories will be allowed only from the registered FFMF of exporting country. Since the requirement will be enforced from the 1st September 2024, Officials involved in the Food Import Clearance are informed to ensure the compliance of office order dated 04th April 2024 by verifying the details of the FFMF provided in the FICS from the ReFoM portal (<https://sites.fssai.gov.in/refom/>) as given below:-

FSSAI Home Page -- ReFoM -- Click here to view -- Country -- Status of FFMF

2.3 It has also been stated that the registration of foreign food manufacturing facilities at the FSSAI portal is a continuous process, and FSSAI will keep updating the portal based on information received from the Competent Authority of the exporting countries.

3. In this regard, it is requested that necessary action may be taken to sensitize officers under your jurisdiction regarding the said matter. Earlier Instructions No. 30/2022-Customs dated 14.11.2022 stands modified to that extent.

4. The difficulties, if any, may be brought to the notice of the Board.

Hindi version follows.

Encls: as above.

Yours faithfully,

(Neeraj Goyal)
OSD (Cus-III)

Email: uscus.3-dor@gov.in
Tele: 011 23094012

Copy to: - (for information and necessary action)

1. The Webmaster, CBIC.

File No. TIC-B02/2/2022-IMPORTS-FSSAI
Food Safety and Standards Authority of India
(A Statutory Authority established under the Food Safety & Standards Act, 2006)
(Trade and International Cooperation Division)
FDA Bhawan, Kotla Road, New Delhi-110002

Dated: The 30th August, 2024

Subject: Requirement of Registration of Foreign Food Manufacturing Facilities as per Food Safety and Standards (Import) First Amendment Regulations, 2021, dated 03.11.2021-reg.

Reference is drawn to FSSAI's order of even no. dated 10th October, 2022, and further order dated 04th April, 2024 (copy enclosed) whereby it was notified that registration of foreign food manufacturing facilities (FFMF) falling under following five food categories, who are intended to export these food products shall be mandatory from 1st September, 2024: -

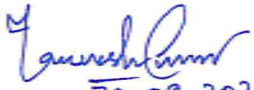
- i. Milk and Milk products;
- ii. Meat and Meat products including Poultry, Fish and their products;
- iii. Egg powder;
- iv. Infant Food;
- v. Nutraceuticals.

In this respect, an online portal- 'ReFoM,' available on the FSSAI website, has been created, which contains the information about the FFMF intended to export articles of the above food categories to India as provided by the Competent Authority of the exporting country. After examining the requisite information, the individual FFMF is registered, the portal is updated, and a unique registration number (URN) is generated by FSSAI for each facility registered at the 'ReFoM' portal. The same may be easily accessed from the said portal 'ReFoM' (<https://sites.fssai.gov.in/refom/>).

Further, the FSSAI order dated 04th April 2024 mentioned that FFMF of the exporting country shall be registered, through their competent authority, to comply with the provisions from **1st September 2024**. Thereafter, the import of above said food categories will be allowed only from the registered FFMF of exporting country. Since the requirement will be enforced from the 1st September 2024, Officials involved in the Food Import Clearance are informed to ensure the compliance of office order dated 04th April 2024 by verifying the details of the FFMF provided in the FICS from the ReFoM portal (<https://sites.fssai.gov.in/refom/>) as given below:-

FSSAI Home Page → ReFoM → Click here to view → Country → Status of FFMF

It is also informed that the registration of foreign food manufacturing facilities at the FSSAI portal is a continuous process, and FSSAI will keep updating the portal based on information received from the Competent Authority of the exporting countries. Therefore, it is advised to sensitize the Officials and the Concerned Importers to comply with the requirement from 1st September 2024.


30.08.2024
Manvesh Kumar(IRS)
Director (TICD)

To,

1. Joint Secretary (Customs) – with a request to sensitize the concerned field officers
2. Regional Directors, FSSAI – with a request to sensitize the concerned field officers
3. Director (Customs) – with a request to sensitize the concerned field officers
4. All Authorized Officers – for compliance

File No. TIC-B02/2/2022-IMPORTS-FSSAI
Food Safety and Standards Authority of India
(A Statutory Authority established under the Food Safety & Standards Act, 2006)
(Trade and International Cooperation Division)
FDA Bhawan, Kotla Road, New Delhi-110002

Dated: The 04th April, 2024

ORDER

Subject: Requirement of Registration of Foreign Food Manufacturing facilities as per Food Safety and Standards (Import) First Amendment Regulations, 2021, dated 03.11.2021-reg.

Reference is drawn to FSSAI's order of even no. dated 10th October, 2022, whereby it was notified that registration of foreign food manufacturing facilities (FFMF) falling under following five food categories, who are intended to export these food products shall be mandatory from 1st February, 2023: -

- i. Milk and Milk products;
- ii. Meat and Meat products including Poultry, Fish and their products;
- iii. Egg powder;
- iv. Infant Food;
- v. Nutraceuticals.

For the registration purpose, it has been decided that information regarding facilities shall be provided by the Competent Authority of the exporting countries and data will be managed and maintained by FSSAI. Accordingly, an online portal- 'ReFoM' available at FSSAI website has been created, which contains the detailed information of the FFMF intended to export articles of above food categories to India as provided by the Competent Authority of the exporting country. After examining the requisite information, the individual FFMF is registered and the portal is updated. Accordingly, a unique registration number (URN) is generated by FSSAI for each facility registered at 'ReFoM'. The same may be easily access from the said portal 'ReFoM' (<https://sites.fssai.gov.in/refom/>)

This office is in receipt of communications from various stakeholders seeking extension of transition period for the registration of foreign food manufacturing facilities to avoid disruption in export. Considering the request from the stakeholders, the import of articles of above said food categories to India shall be allowed till 31.08.2024 from both registered and non-registered foreign food manufacturing facilities.

It is again apprised that stakeholders may ensure that the requisite information pertaining to un-registered foreign food manufacturing facilities who intend to export the above mentioned food categories to India, should be shared through the Competent

Authority of the respective country with FSSAI via an e-mail at import@fssai.gov.in. The requisite information should be shared at least 30 days in advance from the shipment of the cargo as per the format annexed with an order dated 10.10.2022(copy attached).

The registration of foreign food manufacturing facilities at FSSAI portal is a continuous process and FSSAI will keep updating the portal based on information received from the Competent Authority of the exporting countries and the due examination thereof. In view of this, stakeholders are encouraged to register or update their facility well in advance at FSSAI online portal 'ReFoM' through the Competent Authority before exporting articles of above said food categories to India to avoid disruption in trade.

This issues with the approval of the Competent Authority.


04.04.2024
Manvesh Kumar(IRS)
Director (TICD)

To,

All Authorized Officers of FSSAI & Customs for information and compliance.

फाइल संख्या: TIC-B02/2/2022-IMPORTS-FSSAI
भारतीय खाद्य सुरक्षा और मानक प्राधिकरण
(खाद्य सुरक्षा और मानक अधिनियम, 2006 के तहत स्थापित वैधानिक प्राधिकरण)
(व्यापार और अंतर्राष्ट्रीय सहयोग प्रभाग)
एफडीए भवन, कोटला रोड, नई दिल्ली- 110002

दिनांक: 04th अप्रैल, 2024

आदेश

विषय: खाद्य सुरक्षा और मानक (आयात) प्रथम संशोधन विनियम, 2021, दिनांक 03.11.2021 के अनुसार विदेशी खाद्य विनिर्माण सुविधाओं के पंजीकरण की आवश्यकता के संबंध में

एफएसएसएआई के दिनांक 10 अक्टूबर, 2022 के सम संख्यक आदेश के अनुसार यह अधिसूचित किया गया था कि निम्नलिखित पांच खाद्य श्रेणियों के अंतर्गत आने वाले खाद्य उत्पादों के निर्यात हेतु विदेशी खाद्य विनिर्माण सुविधाओं (एफएफएमएफ) का पंजीकरण 1 फरवरी, 2023 से अनिवार्य होगा: -

- दूध और दुग्ध उत्पाद;
- मांस और मांस उत्पाद, कुक्कुटपालन, मछली और मत्स्य उत्पादों सहित;
- अंडे का पाउडर;
- शिशु आहार;
- न्यूट्रास्यूटिकल्स।

पंजीकरण उद्देश्य के लिए, यह निर्णय लिया गया है कि सुविधाओं के संबंध में जानकारी निर्यातक देशों के सक्षम प्राधिकारी द्वारा प्रदान की जाएगी और डेटा का प्रबंधन और रखरखाव एफएसएसएआई द्वारा किया जाएगा। तदनुसार, एफ.एस.एस.ए.आई वेबसाइट पर उपलब्ध एक ऑनलाइन पोर्टल- 'ReFoM' बनाया गया है, जिसमें निर्यातक देश के सक्षम प्राधिकारी द्वारा प्रदान की गई उपरोक्त खाद्य श्रेणियों की वस्तुओं को भारत में निर्यात करने की इच्छुक एफएफएमएफ की विस्तृत जानकारी दी गई है। अपेक्षित जानकारी की जांच करने के बाद प्रत्येक एफएफएमएफ पंजीकृत किया जाता है और पोर्टल को अपडेट किया जाता है। तदनुसार, 'ReFoM' पर पंजीकृत प्रत्येक सुविधा के लिए एफ.एस.एस.ए.आई द्वारा एक अद्वितीय पंजीकरण संख्या (URN) जनरेट की जाती है। इसे उक्त पोर्टल 'ReFoM' (<https://sites.fssai.gov.in/refom/>) पर आसानी से एक्सेस किया जा सकता है।

व्यापार में व्यवधान से बचने के लिए विदेशी खाद्य विनिर्माण सुविधाओं के पंजीकरण की माध्यमिक अवधि बढ़ाने के संबंध में विविध हितधारकों की ओर से इस कार्यालय को पत्राचार प्राप्त हुए हैं। हितधारकों के अनुरोध पर विचार करते हुए, पंजीकृत और गैर-पंजीकृत दोनों विदेशी खाद्य विनिर्माण सुविधाओं की ओर से भारत में उपरोक्त खाद्य श्रेणियों की वस्तुओं के आयात की अनुमति 31.08.2024 तक दी जाएगी।

यह पुनः सूचित किया जाता है कि उपरोक्त खाद्य पदार्थों को भारत में निर्यात करने के इच्छुक हितधारक गैर-पंजीकृत विदेशी खाद्य विनिर्माण सुविधाओं से संबंधित अपेक्षित सूचनाओं को अपने संबंधित देश के सक्षम प्राधिकारी के माध्यम से एफ.एस.एस.आई को import@fssai.gov.in पर ई-मेल कर सकते हैं। अपेक्षित जानकारी कार्गो के शिपमेंट से कम से कम 30 दिन पहले दिनांक 10.10.2022 के आदेश के साथ संलग्न प्रारूप (प्रतिलिपि संलग्न) के अनुसार साझा की जानी चाहिए।

एफएसएसआई पोर्टल पर विदेशी खाद्य विनिर्माण सुविधाओं का पंजीकरण एक सतत प्रक्रिया है और एफएसएसआई निर्यातक देशों के सक्षम प्राधिकारी से प्राप्त जानकारी और उसकी उचित जांच के आधार पर पोर्टल को अपडेट करता रहेगा। इस परिप्रेक्ष्य में हितधारकों को व्यापार में व्यवधान से बचने के लिए भारत में उपरोक्त खाद्य श्रेणियों की वस्तुओं को निर्यात करने से पहले सक्षम प्राधिकारी के माध्यम से एफएसएसआई के ऑनलाइन पोर्टल 'ReFoM' पर अपनी सुविधा को पहले से पंजीकृत या अपडेट करने के लिए प्रोत्साहित किया जाता है।

इसे सक्षम प्राधिकारी के अनुमोदन से जारी किया जाता है।

मानवेश
04.04.2024
मानवेश कुमार (आईआरएस)

निदेशक (व्यापार और अंतर्राष्ट्रीय सहयोग प्रभाग)

सूचनार्थ प्रति:

सूचना और अनुपालन हेतु एफएसएसआई एवं सीमा शुल्क के सभी प्राधिकृत अधिकारी।

F. No. TIC-B02/2/2022-IMPORTS-FSSAI
Food Safety and Standards Authority of India
(A Statuary Authority established under the Food Safety and Standards Act, 2006)
(Trade & International Cooperation Division)
FDA Bhawan, Kotla Road, New Delhi-110002

Dated: The 10th October, 2022

ORDER

Subject: - Requirement of Registration of foreign food manufacturing facilities as per Food Safety and Standards (Import) First Amendment Regulations, 2021 dated 03.11.2021 -reg.

In exercise of the provisions of Food Safety and Standards (Import) First Amendment Regulations, 2021, it has been decided that registration of **foreign food manufacturing facilities falling under following food categories, who are intended to export these food products shall be mandatory: -**

- i) Milk and Milk Products;
- ii) Meat and Meat Products including Poultry, Fish and their products;
- iii) Egg powder
- iv) Infant Food;
- v) Nutraceuticals.

In view of the above, the Competent Authorities of all the exporting countries are requested to provide the list of existing manufacturers and of those who are intended to export such food products to India as per the format attached at email id: dramit.sharma@fssai.gov.in and import@fssai.gov.in . Based on the list provided by the Competent Authority of exporting country, the registration of such facilities will be done by the Food Safety and Standards Authority of India at its portal.

This order will be effective from 1st February, 2023. This issues with the approval of the Competent Authority.


(Dr. Amit Sharma)
Director (Trade and IC)

To,

- 1) All Authorized Officers –for compliance.
- 2) Additional Director General, Risk Management Division, Central Board of Excise and Customs (CBIC).
- 3) Director, Customs-for circulating to all officials of Customs who has been nominated as Authorized Officers.

Format for Registration of foreign food manufacturing facilities

Country Name:	
1	Competent Authority in Exporting country Name: Address and contact details:
2	Details of Food Manufacturer: Name: Address and contact details:
3	Approval/License no. issued by the Competent Authority:
4	Name and HS Code of Product/s to be exported to India:

Date.....

Place.....

Signatures and seal of authorized signatory

Name and address.....